

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ANGEL VALENTIN,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. OMAR HABIB OF THE 40TH PCT,
SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO
ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL
CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH
PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,Defendant(s).
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Bronx
County as the place of trial.The basis of venue is:
PLACE OF OCCURRENCEPlaintiff resides at:
2075 2nd Avenue, Apt 11E
New York, NY 10029
County of NEW YORK**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York

February 27, 2020
KAREN BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
ANGEL VALENTIN
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9533TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

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NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

P.O. OMAR HABIB OF THE 40TH PCT,
SHIELD #: 000748, TAX ID #: 942899
257 Alexander Avenue
Bronx, New York 10454

DET. ANTONIO ESPARRA OF THE
263-40 DET SQUAD
257 Alexander Avenue
Bronx, New York 10454

DET. MICHAEL CARIDI OF 40TH PCT.
257 Alexander Avenue
Bronx, New York 10454

P.O. DAISY GONZALEZ OF THE 40TH PCT
PBBX ACU
257 Alexander Avenue
Bronx, New York 10454

P.O. INGOGLIO OF THE 40TH PCT
257 Alexander Avenue
Bronx, New York 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANGEL VALENTIN,

Plaintiff(s),

Index No.:

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**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #:
000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE
263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O.
DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O.
INGOGLIO OF THE 40TH PCT.,

Defendant(s).

-----X
Plaintiff by his attorneys, GETZ & BRAVERMAN, P.C. complaining of the Defendants,
respectfully alleges, upon information and belief:

1. That at all times herein mentioned, the Plaintiff was, and still is a resident of the
County of New York, State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, **THE CITY OF NEW
YORK**, (hereinafter referred to as "CITY", was and still is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant,
CITY, its agents, servants, employees and/or licensees operated, maintained and
controlled **NEW YORK CITY POLICE DEPARTMENT**, including all the police
officers thereof.

4. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY POLICE DEPARTMENT**, its agents servants and employees supervised, maintained and controlled its personnel.
5. Upon information and belief, at all times mentioned, Defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICAH EL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK.**
6. That a Notice of Claim was filed on March 14, 2019.
7. That more than 30 days have elapsed since the Notice of Claim and Intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.

**AS AND FOR THE FIRST CAUSE OF ACTION
MALICIOUS PROSECUTION**

9. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "8" with the same force and effect as if more fully set forth herein.

10. That on or about September 2, 2016, Plaintiff, **ANGEL VALENTIN**, was wrongfully and falsely arrested, detained and imprisoned for several days and maliciously prosecuted without any right or grounds therefore.
11. That on or about September 2, 2016, the defendant **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiff, **ANGEL VALENTIN**, of the crimes of criminal possession of a weapon in the third and fourth degree, possession of marijuana and possession of ammunition among other charges.
12. Upon information and belief, on or about September 16, 2016 and from that time until the dismissal of charges on or about December 18, 2018 which was a favorable termination for the accused by the Bronx County Criminal Court, Defendants **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** deliberately and maliciously prosecuted Plaintiff **ANGEL VALENTIN**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

13. That the said arrest and imprisonment of plaintiff, **ANGEL VALENTIN** was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **ANGEL VALENTIN** was in fact guilty of such crimes.
14. That the said arrest of the plaintiff herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.
15. That the defendant, their agents, servants and/or employees falsely arrested the plaintiff, compelled him to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff at other diverse places and times, including, but not limited to, precinct in the station-house in the County of Bronx, City and State of New York, Central Booking located in the Borough of Bronx, City and State of New York and Riker's Island Correctional Facility.
16. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiff herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the

plaintiff be, arrested, searched, detained and placed in confinement at said locations.

17. That **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** testified on the Grand Jury, Bronx County and testified in a false, intentional and malicious manner to facts that were false and not true.
18. Furthermore, during the trial of this matter, Defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** did perjur themselves in order to attempt, and/or obtain a conviction of the Plaintiff.
19. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiff **ANGEL VALENTIN** was falsely, publicly, wickedly and maliciously accused, arrested and detained in a correctional facility.
20. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiff herein; plaintiff was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.

21. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

§1983 CAUSE OF ACTION: FALSE ARREST, MALICIOUS PROSECUTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "21" inclusive with the same force and effect as if more fully and at length set forth herein.
23. That on or about September 2, 2016, in the County of Bronx, City and State of New York, at which time and place defendants **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT.**
24. As plaintiff was lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** who having

the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be arrested, detained, prosecuted and imprisoned, stripped and searched and in violation of plaintiff's civil rights; in ailing to recognize, detect and investigate same; in testifying in the Grand Jury, Bronx County and testified in a false, intentional and malicious manner to facts that were false and not true; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiff.

25. That defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** failed to properly and adequately ascertain that plaintiff was not in violation of the law and that plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving him of his rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed him and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiff without any conduct on the part of the plaintiff to so warrant, to wit: in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office,

committed with the intention to cause economic and mental injury to the plaintiff, arrested, detained, prosecuted and imprisoned the plaintiff without his consent; plaintiff was at all times conscious of his arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged;

- b) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of Bronx, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.
- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,
- d) that the defendants, their agents, servants and employees failed to

- adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws of the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,
- e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,
- f) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,
- g) That the said arrest, detention, prosecution and imprisonment were

instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,

- h) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.

26. Defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, did not have probable cause to arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United

States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

27. Defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, did not have probable cause to arrest, detain, prosecute and imprison plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.
28. As a direct result of the aforesaid actions and conduct of the part of the said defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, plaintiff was falsely arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of Bronx and to undergo a criminal proceeding(s).
29. That at all times hereinafter mentioned, the defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O.**

INGOGLIO OF THE 40TH PCT., were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.

30. That at all times hereinafter mentioned, defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YOR CITY POLICE DEPARTMENT** and acting within the scope and authority of his/their employment and office.
31. That at all times hereinafter mentioned, defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** within the scope and authority of their employment and office.

32. That at all times hereinafter mentioned, defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICAH EL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** were acting pursuant to, and within the scope and authority of their employment and office.
33. That during all times hereinafter mentioned, the defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICAH EL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiff and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.
34. The defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICAH EL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** were employed by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT,** acting under color of law, have

subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** did not confer due process upon the plaintiff herein, and in denied the rights, privileges and immunities guaranteed plaintiff and other citizens of the United States of America by the Constitution of the United States of America.

35. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of **NEW YORK CITY POLICE DEPARTMENT** and more particularly the defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** in acting in concert with persons unknown to the plaintiff and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers my

properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

36. Although defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARMENT**, knew or should have known of the fact that this pattern of conduct was carried out by, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICAH EL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other Citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.
37. The conduct of the defendants, **P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICAH EL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.**, deprived plaintiff of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:
- a) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
 - b) The right of plaintiff no to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.
38. That by reason of the aforesaid negligence, false arrest and false imprisonment, malicious prosecution, negligent performance of duties, negligent hiring and

retention, negligent training and supervision, and violation of civil rights caused by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff, and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** violated 42 U.S.C. Sec. 1983 in that the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** acted as persons who under color of any statute, ordinances,

regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule, injured his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

39. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was cause solely and wholly by reason of the negligence of the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. OMAR HABIB OF THE 40TH PCT, SHIELD #: 000748, TAX ID #: 942899, DET. ANTONIO ESPARRA OF THE 263-40 DET SQUAD, DET. MICHAEL CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO OF THE 40TH PCT.,** without any negligence on the part of the plaintiff herein.

40. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and

he was incapacitated from his usual occupation. Upon information and belief, plaintiff has expended diverse sums of monies, and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.

41. That by reason of the aforesaid, the plaintiff requests the following relief:

- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
- b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York

February 27, 2020

Yours, etc.

Karen Braverman

KAREN BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
ANGEL VALENTIN
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9533

ATTORNEY'S VERIFICATION

KAREN BRAVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at GETZ & BRAVERMAN, P.C., attorneys of record for Plaintiff(s), **ANGEL LUIS VALENTIN**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
February 27, 2020

Karen Braverman
KAREN BRAVERMAN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANGEL VALENTIN,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK
CITY, POLICE DEPARTMENT, P.O. OMAR
HABIB OF THE 40TH PCT, SHIELD #: 000748,
TAX ID #: 942899, DET. ANTONIO ESPARRA
OF THE 263-40 DET SQUAD, DET. MICHAEL
CARIDI OF 40TH PCT., P.O. DAISY GONZALEZ
OF THE 40TH PCT, PBBX ACU and P.O. INGOGLIO
OF THE 40TH PCT.,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
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TO: